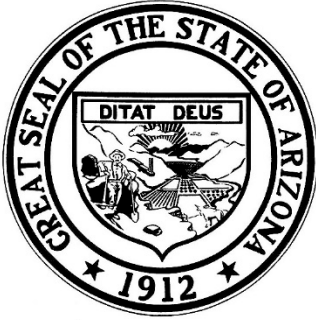


## HOUSE FLOOR AMENDMENT EXPLANATION



Bill Number: **HB 2923**

Hernandez C Floor Amendment

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The C Hernandez Amendment dated 3/2/2026 at 9:56am:

1. Mandates before rendering an opinion regarding the patient's ability of accept and follow with recommended treatment voluntarily the medical director of the agency make a good faith effort to contact
2. Adds that if the patient is under a guardianship, within 3 days after receiving a request for judicial review the medical director of the agency must notify the guardian that a request for judicial review has been presented to the agency and is being filed with the court for further action
  - a. Clarifies if the hearing is set on request of judicial review, mandates the court notify the guardian of the time and place of the hearing
  - b. Allows the guardian to submit additional materials for the court to consider and can participate in any hearing scheduled on the request of judicial review
  - c. States a copy of any additional materials submitted to the court be given to the other parties by the party submitting the materials
  - d. Allows the court to order an independent examination of the patient
3. Requires the patient be informed at the time the patient makes the request of their right to consult an attorney
  - a. Asserts the patient be allowed to consult an attorney to assist in preparation of petition for the writ of habeas corpus and to present the patient in the hearing
  - b. States if the patient is not represented by an attorney the reviewing court must appoint an attorney to assist the patient in preparation of a petition and to represent the patient in the hearing
4. Adds and effective date from and after December 31, 2026

Amendment explanation prepared by M. Bearden

Phone Number 6-5848

mb

3/2/2026

5. Modifies the form to add the date the request was received be on the completed form
6. Clarifies it is within 3 business days and allows the medical directors designee to deliver the request and other information.
7. Strikes
  - a. Prohibition that judicial review is not available for an issue that has an administrative remedy per rules adopted by AHCCCS
  - b. Stipulates that within 3 days after receiving a request for judicial review, the medical director of the agency must notify the following that a request for judicial review has been presented to the mental health treatment agency and is being filed with the court for further action:
    - i. the guardian of the patient.
    - ii. any relative or victim of the patient who has filed a demand for notice and any other person found by a court to have a legitimate reason for receiving notice per statute
    - iii. if the patient is undergoing treatment as the result of a petition filed by a prosecuting agency, to the prosecuting agency that filed the petition.
  - c. Requires the court notify any person entitled to notice of the time and place of the hearing regardless of whether the court sets a hearing
  - d. States any person who receives notice can submit additional materials for the court to consider and can participate in any hearing scheduled on the request for judicial review
    - i. States any party submitting materials to the court must also provide it to the other parties
  - e. Allows the court to order an independent examination of the patient

ADDITIONAL COW  
HERNANDEZ C FLOOR AMENDMENT  
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2923  
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.  
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.  
~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.  
~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.  
<<Green carets>> indicate a section added to the bill.  
~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 14-5312.01, Arizona Revised Statutes, is amended  
3 to read:

4 14-5312.01. Inpatient treatment; rights and duties of ward  
5 and guardian

6 A. Except as provided in subsection B of this section, a guardian  
7 of an incapacitated person may consent to psychiatric and psychological  
8 care and treatment, including the administration of psychotropic  
9 medications, if the care and treatment take place outside an inpatient  
10 psychiatric facility licensed by the department of health services.

11 B. On clear and convincing evidence that the ward is an  
12 incapacitated person and is likely to be in need of inpatient mental  
13 health care and treatment within the period of the authority granted  
14 pursuant to this section, the court may authorize a guardian appointed  
15 pursuant to this title to give consent for the ward to receive inpatient  
16 mental health care and treatment, including placement in an inpatient  
17 psychiatric facility licensed by the department of health services and  
18 medical, psychiatric and psychological treatment associated with that  
19 placement. The evidence shall be supported by the opinion of a mental  
20 health expert who is either a physician licensed pursuant to title 32,  
21 chapter 13 or 17 and who is a specialist in psychiatry or a psychologist  
22 who is licensed pursuant to title 32, chapter 19.1.

23 C. In making its decision to grant authority to a guardian pursuant  
24 to subsection B of this section, the court shall consider the cause of the  
25 ward's disability and the ward's foreseeable clinical needs. The court  
26 shall limit the guardian's authority to what is reasonably necessary to  
27 obtain the care required for the ward in the least restrictive treatment

1 alternative. The court may limit the duration of the guardian's authority  
2 to consent to inpatient mental health care and treatment and include other  
3 orders the court determines necessary to protect the ward's best  
4 interests.

5 D. Within forty-eight hours after placement of the ward pursuant to  
6 this section, the guardian shall give notice of this action to the ward's  
7 attorney. When the attorney receives this notice the attorney shall  
8 assess the appropriateness of the placement pursuant to section 36-537,  
9 subsection B and section 36-546, subsection ~~H~~ ~~[K]~~ [L]. If requested by  
10 the attorney, the court shall hold a hearing on the appropriateness of the  
11 placement within three days after receiving that request.

12 E. The inpatient psychiatric facility shall assess the  
13 appropriateness of the ward's placement every thirty days and shall  
14 provide a copy of the assessment report to the ward's attorney on  
15 request. The ward's attorney may attend the ward's evaluation, staffing,  
16 treatment team and case management meetings.

17 F. When the ward is admitted to an inpatient psychiatric facility  
18 pursuant to this section, the guardian shall provide the facility with the  
19 name, address and telephone number of the ward's attorney. The facility  
20 shall include this information in the ward's treatment record.

21 G. Within twenty-four hours after the facility receives any writing  
22 in which the ward requests release from the facility, any change in  
23 placement or a change in the type or duration of treatment, the facility  
24 shall forward this information to the ward's attorney.

25 H. All health care providers, treatment facilities and regional  
26 behavioral health authorities shall allow the ward's attorney access to  
27 all of the ward's medical, psychiatric, psychological and other treatment  
28 records.

29 I. The ward's guardian shall place the ward in a least restrictive  
30 treatment alternative within five days after the guardian is notified by  
31 the medical director of the inpatient facility that the ward no longer  
32 needs inpatient care. The ward, a representative of the inpatient  
33 treatment facility, the ward's attorney, the ward's physician or any other  
34 interested person may petition the court to order the facility to  
35 discharge the ward to a least restrictive treatment alternative if the  
36 guardian does not act promptly to do so.

37 J. If the ward is in an inpatient psychiatric facility at the time  
38 of the initial hearing on the petition for appointment of a guardian, the  
39 court investigator and the ward's attorney shall advise the court of the  
40 appropriateness of the placement.

41 K. An attorney appointed pursuant to section 14-5303, subsection C  
42 remains the attorney of record until the attorney is discharged by the  
43 court. The court shall ensure that a ward whose guardian has been granted  
44 inpatient mental health treatment authority is represented by an attorney  
45 at all times the guardian has that authority. Unless the court finds that  
46 the ward has insufficient assets to meet the ward's reasonable and

1 necessary care and living expenses, the ward shall pay the attorney's  
2 reasonable fees.

3       L. If deemed necessary to adequately assess a request for inpatient  
4 mental health treatment authority or to review the ward's placement in an  
5 inpatient psychiatric facility, the court may order an independent  
6 evaluation by either a physician who is licensed pursuant to title 32,  
7 chapter 13 or 17 and who is a specialist in psychiatry or a psychologist  
8 who is licensed pursuant to title 32, chapter 19.1. If the ward has  
9 insufficient funds to pay the total cost of this evaluation, the court may  
10 deem all or any part of the evaluator's fee to be a county expense after  
11 determining the reasonableness of that fee.

12       M. Instead of ordering an independent evaluation pursuant to  
13 subsection L of this section, the court may accept a report conducted on  
14 behalf of the inpatient psychiatric facility if the court finds that the  
15 report meets the requirements of an independent evaluation.

16       N. The court may decide that the ward's right to retain or obtain a  
17 driver license and any other civil right that may be suspended by  
18 operation of law is not affected by the appointment of a guardian.

19       O. If the court grants the guardian the authority to consent to  
20 inpatient mental health care and treatment pursuant to this section, the  
21 medical director of an inpatient psychiatric facility licensed by the  
22 department of health services may admit the ward at the guardian's  
23 request.

24       P. A guardian who is authorized by the court to consent to  
25 inpatient mental health care and treatment pursuant to this section shall  
26 file with the annual report of the guardian required pursuant to section  
27 14-5315 an evaluation report by a physician or a psychologist who meets  
28 the requirements of subsection B of this section. The evaluation report  
29 shall indicate if the ward will likely need inpatient mental health care  
30 and treatment within the period of the authority granted pursuant to this  
31 section. If the guardian does not file the evaluation report or if the  
32 report indicates that the ward will not likely need inpatient mental  
33 health care and treatment, the guardian's authority to consent to this  
34 treatment ceases on the expiration of the period specified in the prior  
35 court order. If the report supports the continuation of the guardian's  
36 authority to consent to inpatient treatment, the court may order that the  
37 guardian's authority to consent to this treatment continues. If the  
38 report supports the continuation of the guardian's authority to consent to  
39 this treatment, the ward's attorney shall review the report with the  
40 ward. The ward may contest the continuation of the guardian's authority  
41 by filing a request for a court hearing within ten business days after the  
42 report is filed. The court shall hold this hearing within thirty calendar  
43 days after it receives the request. The guardian's authority continues  
44 pending the court's ruling on the issue. At the hearing the guardian has  
45 the burden of proving by clear and convincing evidence that the ward is  
46 likely to be in need of inpatient mental health care and treatment within  
47 the period of the authority granted pursuant to this section.

1 Q. The court may discharge an attorney who was appointed pursuant  
2 to section 14-5303, subsection C subsequent to the appointment of a  
3 guardian if it clearly appears from specific facts presented by affidavit  
4 or verified petition that continued representation of the ward is no  
5 longer necessary or desirable. The factual basis must include, at a  
6 minimum, consideration of the following:

7 1. The nature and history of the ward's illness.

8 2. The ward's history of hospitalization.

9 3. The ward's current and anticipated living arrangements.

10 4. Whether the ward's inpatient treatment is anticipated to be a  
11 ~~one-time~~ ONETIME hospitalization for the purpose of stabilizing the ward's  
12 condition and further hospitalizations are not likely to be necessary.

13 5. Whether the ward's current and anticipated living arrangements  
14 are the least restrictive alternatives possible.

15 Sec. 2. Section 36-546, Arizona Revised Statutes, is amended to  
16 read:

17 36-546. Judicial review; right to be informed; request;  
18 jurisdiction

19 A. ~~In addition to the procedure for applying for a writ of habeas~~  
20 ~~corpus, as provided in title 13, chapter 38, article 26,~~ A patient  
21 receiving court-ordered treatment or any person acting on the patient's  
22 behalf may request ~~the patient's release pursuant to the following:~~

23 1. ~~A request in writing may be presented to any member of the~~  
24 ~~treatment staff of the agency providing the patient's treatment. The~~  
25 ~~request may be made on a prescribed form that shall be prepared by the~~  
26 ~~facility and made available for use by any person. The completed form~~  
27 ~~shall identify:~~

28 (a) ~~The patient being treated and the agency at which the patient~~  
29 ~~is being treated.~~

30 (b) ~~The person to whom the request for release was made.~~

31 (c) ~~The person making the request for release, indicating whether~~  
32 ~~the person is the patient being treated or someone acting on the person's~~  
33 ~~behalf.~~

34 2. ~~The request, when signed and dated by the person making the~~  
35 ~~request for release, shall be delivered to the medical director of the~~  
36 ~~agency. Within three days of receipt of the request, the medical director~~  
37 ~~shall deliver the form, along with a current psychiatric report of the~~  
38 ~~patient's condition, to the clerk of the court. If the person presenting~~  
39 ~~the request refuses to sign the form, the medical director of the agency~~  
40 ~~shall proceed as if the form had been signed and shall note on the form~~  
41 ~~the circumstances as to why the form was not signed. THAT THE COURT REVIEW~~  
42 ~~WHETHER THE PATIENT IS STILL IN NEED OF CONTINUED COURT-ORDERED TREATMENT.~~  
43 ~~[JUDICIAL REVIEW IS NOT AVAILABLE FOR AN ISSUE THAT HAS AN ADMINISTRATIVE~~  
44 ~~REMEDY PURSUANT TO RULES ADOPTED BY THE ARIZONA HEALTH CARE COST~~  
45 ~~CONTAINMENT SYSTEM.] THE RIGHTS AND PROCEDURES PRESCRIBED IN THIS SECTION~~  
46 ~~ARE IN ADDITION TO THE RIGHTS AND PROCEDURES FOR APPLYING FOR A WRIT OF~~  
47 ~~HABEAS CORPUS AS PROVIDED IN TITLE 13, CHAPTER 38, ARTICLE 26.~~

1 B. A REQUEST FOR JUDICIAL REVIEW MAY NOT BE MADE SOONER THAN NINETY  
2 DAYS AFTER THE ORIGINAL ORDER FOR COURT-ORDERED TREATMENT IS ENTERED.  
3 EXCEPT FOR REQUESTS FOR JUDICIAL REVIEW MADE PURSUANT TO SECTION 36-540,  
4 SUBSECTION E, PARAGRAPHS 5 AND 6 AND SECTION 36-540.01, SUBSECTION K, A  
5 REQUEST FOR A SUBSEQUENT JUDICIAL REVIEW MAY NOT BE MADE SOONER THAN SIXTY  
6 DAYS AFTER AN ORDER DECIDING A PREVIOUS REQUEST FOR JUDICIAL REVIEW IS  
7 ENTERED.

8 ~~B.~~ C. The patient shall be informed BY THE MEDICAL DIRECTOR OF THE  
9 MENTAL HEALTH TREATMENT AGENCY of the patient's right to judicial review  
10 ~~by the medical director of the agency~~ and the patient's right to consult  
11 with ~~counsel~~ AN ATTORNEY at least once each sixty days while the patient  
12 is undergoing court-ordered treatment. The notification required by this  
13 subsection shall be recorded in the clinical record of the patient by the  
14 individual who gave the notice.

15 ~~C. With the exception of requests made pursuant to section 36-540,~~  
16 ~~subsection E, paragraphs 5 and 6 and section 36-540.01, subsection K for~~  
17 ~~judicial review, a request for judicial review may not be made sooner than~~  
18 ~~sixty days after the issuance of the order for treatment or a hearing on a~~  
19 ~~previous petition for habeas corpus or the issuance of the court order or~~  
20 ~~other final resolution determining a previous request for judicial review~~  
21 ~~by the patient.~~

22 D. A REQUEST FOR JUDICIAL REVIEW SHALL BE MADE IN THE FOLLOWING  
23 MANNER:

24 1. A WRITTEN REQUEST FOR JUDICIAL REVIEW MAY BE PRESENTED TO ANY  
25 MEMBER OF THE TREATMENT STAFF OF THE MENTAL HEALTH TREATMENT AGENCY  
26 PROVIDING THE PATIENT'S TREATMENT. THE REQUEST MAY BE MADE BY THE  
27 PATIENT, AN ATTORNEY REPRESENTING THE PATIENT OR A HEALTH CARE  
28 DECISION-MAKER ACTING ON BEHALF OF THE PATIENT. THE REQUEST MAY BE MADE  
29 ON A PRESCRIBED FORM THAT IS PREPARED BY THE MENTAL HEALTH TREATMENT  
30 AGENCY AND MADE AVAILABLE FOR USE BY ANY PERSON. THE COMPLETED FORM SHALL  
31 IDENTIFY:

32 (a) THE NAME AND DATE OF BIRTH OF THE PATIENT BEING TREATED.

33 (b) THE MENTAL HEALTH TREATMENT AGENCY ASSIGNED TO SUPERVISE AND  
34 ADMINISTER THE PATIENT'S TREATMENT PROGRAM AND, IF THE PATIENT IS BEING  
35 TREATED AS AN INPATIENT, THE INPATIENT MENTAL HEALTH TREATMENT AGENCY AT  
36 WHICH THE PATIENT IS BEING TREATED.

37 (c) THE NAME OF THE PERSON TO WHOM THE REQUEST FOR JUDICIAL REVIEW  
38 WAS PRESENTED [AND THE DATE THE REQUEST WAS RECEIVED].

39 (d) WHETHER THE PERSON MAKING THE REQUEST IS THE PATIENT BEING  
40 TREATED OR SOMEONE ACTING ON THE PATIENT'S BEHALF. IF THE REQUEST IS MADE  
41 BY SOMEONE OTHER THAN THE PATIENT, THE FORM MUST IDENTIFY THE NAME AND  
42 CONTACT INFORMATION OF THE PERSON MAKING THE REQUEST AND IN WHAT CAPACITY  
43 THE PERSON IS ACTING ON BEHALF OF THE PATIENT.

44 2. A MENTAL HEALTH TREATMENT STAFF MEMBER WHO RECEIVES A WRITTEN  
45 REQUEST FOR JUDICIAL REVIEW SHALL PROMPTLY DELIVER THE REQUEST TO THE  
46 MEDICAL DIRECTOR OF THE MENTAL HEALTH TREATMENT AGENCY. IF THE PERSON  
47 PRESENTING THE REQUEST REFUSES TO SIGN IT, THE MEDICAL DIRECTOR OF THE

1 MENTAL HEALTH TREATMENT AGENCY SHALL PROCEED AS IF THE REQUEST HAD BEEN  
2 SIGNED AND SHALL NOTE ON THE REQUEST THE CIRCUMSTANCES WHY THE REQUEST WAS  
3 NOT SIGNED.

4 3. WITHIN THREE [BUSINESS] DAYS AFTER RECEIVING THE REQUEST, THE  
5 MEDICAL DIRECTOR OF THE MENTAL HEALTH TREATMENT AGENCY [OR THE MEDICAL  
6 DIRECTOR'S DESIGNEE] SHALL DELIVER THE REQUEST, ALONG WITH A CURRENT  
7 PSYCHIATRIC REPORT OF THE PATIENT'S CONDITION, TO BE FILED WITH THE CLERK  
8 OF THE COURT. THE CURRENT PSYCHIATRIC REPORT SHALL EXPRESS THE OPINION OF  
9 THE MEDICAL DIRECTOR OF THE MENTAL HEALTH TREATMENT AGENCY AS TO WHETHER  
10 THE PATIENT CONTINUES TO MEET THE CRITERIA FOR COURT-ORDERED  
11 TREATMENT. IF THE MEDICAL DIRECTOR OF THE MENTAL HEALTH TREATMENT AGENCY  
12 IS OF THE OPINION THAT A COURT ORDER FOR TREATMENT IS NO LONGER NEEDED  
13 BECAUSE, ALTHOUGH THE PATIENT CONTINUES TO HAVE A MENTAL DISORDER, THE  
14 PATIENT IS WILLING TO ACCEPT VOLUNTARY TREATMENT, THE MEDICAL DIRECTOR OF  
15 THE MENTAL HEALTH TREATMENT AGENCY SHALL STATE AN OPINION REGARDING THE  
16 PATIENT'S ABILITY TO ACCEPT AND FOLLOW THROUGH WITH RECOMMENDED TREATMENT  
17 VOLUNTARILY. IN RENDERING SUCH AN OPINION, THE MEDICAL DIRECTOR OF THE  
18 MENTAL HEALTH TREATMENT AGENCY SHALL CONSIDER THE PATIENT'S HISTORY OF  
19 COMPLIANCE WITH TREATMENT BOTH BEFORE AND AFTER THE COURT ORDER WAS  
20 ENTERED, INCLUDING INFORMATION RELEVANT TO THE HISTORY OF PATIENT'S  
21 BEHAVIOR DURING AND BEFORE THE COURT ORDER WAS ENTERED FROM PERSONS KNOWN  
22 TO THE MENTAL HEALTH TREATMENT AGENCY WHO HAVE A SIGNIFICANT RELATIONSHIP  
23 WITH THE PATIENT, INCLUDING FAMILY MEMBERS AND GUARDIANS. [BEFORE  
24 RENDERING AN OPINION REGARDING THE PATIENT'S ABILITY TO ACCEPT AND FOLLOW  
25 THROUGH WITH RECOMMENDED TREATMENT VOLUNTARILY, THE MEDICAL DIRECTOR OF  
26 THE MENTAL HEALTH TREATMENT AGENCY SHALL MAKE A GOOD FAITH EFFORT TO  
27 CONTACT PERSONS KNOWN TO THE MENTAL HEALTH TREATMENT AGENCY WHO HAVE A  
28 SIGNIFICANT RELATIONSHIP WITH THE PATIENT.]

29 ~~[4. WITHIN THREE DAYS AFTER RECEIVING A REQUEST FOR JUDICIAL~~  
30 ~~REVIEW, THE MEDICAL DIRECTOR OF THE MENTAL HEALTH TREATMENT AGENCY SHALL~~  
31 ~~NOTIFY THE FOLLOWING THAT A REQUEST FOR JUDICIAL REVIEW HAS BEEN PRESENTED~~  
32 ~~TO THE MENTAL HEALTH TREATMENT AGENCY AND IS BEING FILED WITH THE COURT~~  
33 ~~FOR FURTHER ACTION:~~

34 ~~(a) THE GUARDIAN OF THE PATIENT.~~

35 ~~(b) ANY RELATIVE OR VICTIM OF THE PATIENT WHO HAS FILED A DEMAND~~  
36 ~~FOR NOTICE AND ANY OTHER PERSON FOUND BY A COURT TO HAVE A LEGITIMATE~~  
37 ~~REASON FOR RECEIVING NOTICE PURSUANT TO SECTION 36-541.01.~~

38 ~~(c) IF THE PATIENT IS UNDERGOING TREATMENT AS THE RESULT OF A~~  
39 ~~PETITION FILED BY A PROSECUTING AGENCY PURSUANT TO SECTION 13-4517, TO THE~~  
40 ~~PROSECUTING AGENCY THAT FILED THE PETITION.]~~

41 [E. IF THE PATIENT IS UNDER A GUARDIANSHIP, WITHIN THREE DAYS AFTER  
42 RECEIVING A REQUEST FOR JUDICIAL REVIEW, THE MEDICAL DIRECTOR OF THE  
43 MENTAL HEALTH TREATMENT AGENCY SHALL NOTIFY THE GUARDIAN THAT A REQUEST  
44 FOR JUDICIAL REVIEW HAS BEEN PRESENTED TO THE MENTAL HEALTH TREATMENT  
45 AGENCY AND IS BEING FILED WITH THE COURT FOR FURTHER ACTION. IF A HEARING  
46 IS SET ON THE REQUEST FOR JUDICIAL REVIEW, THE COURT SHALL NOTIFY THE  
47 GUARDIAN OF THE TIME AND PLACE OF THE HEARING. THE GUARDIAN MAY SUBMIT



1 ADDITIONAL MATERIALS FOR THE COURT TO CONSIDER AND MAY PARTICIPATE IN ANY  
2 HEARING SCHEDULED ON THE REQUEST FOR JUDICIAL REVIEW. COPIES OF ANY  
3 ADDITIONAL MATERIALS SUBMITTED TO THE COURT SHALL BE GIVEN TO THE OTHER  
4 PARTIES BY THE PARTY SUBMITTING THE ADDITIONAL MATERIALS. THE COURT MAY  
5 ORDER AN INDEPENDENT EXAMINATION OF THE PATIENT.]

6 ~~[F.]~~ [E.] DELIVERY OF THE NOTICE REQUIRED BY SUBSECTION ~~[D-]~~ [E]  
7 OF THIS SECTION SHALL BE ACCOMPLISHED BY ANY REASONABLE MEANS DESIGNED TO  
8 IMPART IMMEDIATE NOTICE OF THE ACTION TAKEN, SUCH AS ELECTRONIC  
9 TRANSMISSION WITH RECEIPT CONFIRMED BY THE PERSON TO WHOM IT IS SENT OR  
10 HAND DELIVERY. THE MEDICAL DIRECTOR OF THE MENTAL HEALTH TREATMENT AGENCY  
11 SHALL CERTIFY THE DELIVERY AND RECEIPT OF DELIVERY BY A STATEMENT IN THE  
12 DOCUMENTS DELIVERED TO THE COURT FOR FILING PURSUANT TO SUBSECTION D OF  
13 THIS SECTION OR BY A SEPARATE WRITTEN CERTIFICATE FILED WITH THE COURT.  
14 IF DELIVERY IS NOT ACCOMPLISHED, THE MENTAL HEALTH TREATMENT AGENCY SHALL  
15 CERTIFY ALL EFFORTS TO ACCOMPLISH DELIVERY AND STATE THE REASONS DELIVERY  
16 COULD NOT BE ACCOMPLISHED. A PERSON WHO IS ENTITLED TO NOTICE MAY WAIVE  
17 DELIVERY.

18 ~~[F. A PATIENT RECEIVING COURT-ORDERED TREATMENT HAS THE RIGHT TO~~  
19 ~~CONSULT WITH AND RECEIVE ASSISTANCE OF AN ATTORNEY TO PREPARE A REQUEST~~  
20 ~~FOR JUDICIAL REVIEW OR A PETITION FOR HABEAS CORPUS AND TO REPRESENT THE~~  
21 ~~PATIENT AT ANY HEARING AS SET FORTH IN THIS SECTION. AT THE TIME THE~~  
22 ~~PATIENT MAKES A REQUEST FOR JUDICIAL REVIEW, THE PATIENT SHALL BE INFORMED~~  
23 ~~OF THE PATIENT'S RIGHT TO CONSULT AN ATTORNEY BY THE PERSON TO WHOM THE~~  
24 ~~PATIENT MAKES THE REQUEST. IF THE PATIENT IS NOT REPRESENTED BY AN~~  
25 ~~ATTORNEY AND REQUESTS THAT AN ATTORNEY BE APPOINTED, THE MENTAL HEALTH~~  
26 ~~TREATMENT AGENCY WHERE THE PATIENT IS BEING TREATED SHALL PROMPTLY NOTIFY~~  
27 ~~THE REVIEWING COURT OF THE PATIENT'S REQUEST FOR APPOINTMENT OF AN~~  
28 ~~ATTORNEY. WITHIN TWO BUSINESS DAYS AFTER RECEIVING NOTICE OF THE~~  
29 ~~PATIENT'S REQUEST, THE COURT SHALL APPOINT AN ATTORNEY TO ASSIST THE~~  
30 ~~PATIENT IN PREPARING A PETITION AND TO REPRESENT THE PATIENT IN ANY~~  
31 ~~HEARING.]~~

32 [G. THE PATIENT SHALL BE INFORMED, AT THE TIME THE PATIENT MAKES  
33 THE REQUEST, OF THE PATIENT'S RIGHT TO CONSULT AN ATTORNEY BY THE PERSON  
34 OR COURT TO WHOM THE PATIENT MAKES THE REQUEST FOR RELEASE AND, IN THE  
35 CASE OF CONFINEMENT IN A MENTAL HEALTH TREATMENT AGENCY, BY THE REVIEWING  
36 COURT WITHIN ONE DAY AFTER THE COURT'S RECEIPT OF NOTICE FROM THE MEDICAL  
37 DIRECTOR OF THE MENTAL HEALTH TREATMENT AGENCY WHERE THE PATIENT IS BEING  
38 TREATED. THE PATIENT SHALL BE ALLOWED TO CONSULT AN ATTORNEY TO ASSIST IN  
39 PREPARATION OF A PETITION FOR THE WRIT OF HABEAS CORPUS AND TO REPRESENT  
40 THE PATIENT IN THE HEARING. IF THE PATIENT IS NOT REPRESENTED BY AN  
41 ATTORNEY, THE REVIEWING COURT, WITHIN TWO DAYS AFTER THE COURT'S NOTICE TO  
42 THE PATIENT OF THE PATIENT'S RIGHT TO COUNSEL, SHALL APPOINT AN ATTORNEY  
43 TO ASSIST THE PATIENT IN THE PREPARATION OF A PETITION AND TO REPRESENT  
44 THE PATIENT IN THE HEARING.]

45 ~~[G.]~~ [H.] ~~THE [PATIENT OR THE PERSON ACTING ON THE PATIENT'S~~  
46 ~~BEHALF]~~ [MENTAL HEALTH TREATMENT AGENCY] HAS THE BURDEN OF PROVING, BY  
47 CLEAR AND CONVINCING EVIDENCE, THAT THE PATIENT IS ENTITLED TO RELEASE

1 FROM COURT-ORDERED TREATMENT. UNLESS THE COURT FINDS THAT THE PATIENT'S  
2 TREATMENT IS ILLEGAL ON OTHER GROUNDS, THE PATIENT SHALL NOT BE RELEASED  
3 FROM COURT-ORDERED TREATMENT UNLESS THE COURT FINDS THAT COURT-ORDERED  
4 TREATMENT IS NO LONGER REQUIRED BECAUSE THE PATIENT IS NO LONGER, AS THE  
5 RESULT OF A MENTAL DISORDER, A DANGER TO SELF OR A DANGER TO OTHERS OR NO  
6 LONGER HAS A PERSISTENT OR ACUTE DISABILITY OR A GRAVE DISABILITY AND IS  
7 NO LONGER IN NEED OF COURT-ORDERED TREATMENT OR IS WILLING AND ABLE TO  
8 ACCEPT AND FOLLOW THROUGH WITH ANY TREATMENT NEEDED VOLUNTARILY.

9 ~~D.~~ [H.] [I.] Judicial review shall be in the superior court in  
10 the county in which the patient is being treated. ~~That~~ WITHIN FIVE  
11 JUDICIAL DAYS AFTER THE REQUEST FOR JUDICIAL REVIEW IS FILED, THE court  
12 ~~may~~ SHALL review the additional material presented and MAY enter its order  
13 without necessity of ~~further~~ A hearing.

14 ~~E.~~ [I.] [J.] The reviewing court may order a ~~further~~ hearing ON  
15 ITS OWN MOTION OR on the ~~affidavit~~ MOTION of the attorney for the patient,  
16 THE MOTION OF THE PERSON FILING THE REQUEST FOR JUDICIAL REVIEW ON BEHALF  
17 OF THE PATIENT OR THE MOTION OF ANY ~~[PARTY]~~ [GUARDIAN] WHO RECEIVED NOTICE  
18 PURSUANT TO SUBSECTION ~~[D, PARAGRAPH 4]~~ [E] OF THIS SECTION, setting forth  
19 the need for ~~further~~ AN evidentiary hearing ~~and the reasons why the~~  
20 ~~hearing is necessary before the time set for the release of the patient.~~  
21 IF THE COURT ORDERS A HEARING, THE HEARING SHALL BE HELD AS SOON AS  
22 POSSIBLE BUT NOT LATER THAN FIFTEEN CALENDAR DAYS AFTER THE REQUEST FOR  
23 JUDICIAL REVIEW WAS FILED WITH THE COURT. THE HEARING MAY BE CONTINUED  
24 FOR GOOD CAUSE. UNLESS OTHERWISE ORDERED, IF THE PATIENT IS RECEIVING  
25 TREATMENT AS AN INPATIENT, THE PATIENT SHALL REMAIN IN INPATIENT TREATMENT  
26 UNTIL THE COURT HAS MADE ITS DETERMINATION. THE COURT SHALL NOTIFY ~~[ANY~~  
27 ~~PERSON ENTITLED TO NOTICE PURSUANT TO SUBSECTION D, PARAGRAPH 4 OF THIS~~  
28 ~~SECTION]~~ [THE PARTIES] OF THE TIME AND PLACE OF THE HEARING. ~~[REGARDLESS~~  
29 ~~OF WHETHER THE COURT SETS A HEARING, A PERSON PRESCRIBED IN SUBSECTION D,~~  
30 ~~PARAGRAPH 4 OF THIS SECTION WHO RECEIVES NOTICE MAY SUBMIT ADDITIONAL~~  
31 ~~MATERIALS FOR THE COURT TO CONSIDER AND MAY PARTICIPATE IN ANY HEARING~~  
32 ~~SCHEDULED ON THE REQUEST FOR JUDICIAL REVIEW. COPIES OF ANY ADDITIONAL~~  
33 ~~MATERIALS SUBMITTED TO THE COURT SHALL BE GIVEN TO THE OTHER PARTIES BY~~  
34 ~~THE PARTIES SUBMITTING THE MATERIALS. THE COURT MAY ORDER AN INDEPENDENT~~  
35 ~~EXAMINATION OF THE PATIENT.]~~

36 ~~F.~~ ~~The patient shall be informed of the patient's right to consult~~  
37 ~~an attorney by the person or court to whom the patient makes the request~~  
38 ~~for release at the time the patient makes the request and, in the case of~~  
39 ~~confinement in an agency, by the reviewing court within one day of its~~  
40 ~~receipt of notice from the medical director of the agency where the~~  
41 ~~patient is being treated. The patient shall be permitted to consult an~~  
42 ~~attorney to assist in preparation of a petition for the writ of habeas~~  
43 ~~corpus and to represent the patient in the hearing. If the patient is not~~  
44 ~~represented by an attorney, the reviewing court, within two days of its~~  
45 ~~notice to the patient of the patient's right to counsel, shall appoint an~~  
46 ~~attorney to assist the patient in the preparation of a petition and to~~  
47 ~~represent the patient in the hearing.~~

1       ~~G.~~ [J.] [K.] The medical director of the mental health treatment  
2 agency, at least twenty-four hours before the hearing, shall provide the  
3 patient's attorney with a copy of the patient's medical records.

4       ~~H.~~ [K.] [L.] The patient's attorney shall fulfill all of the  
5 following minimal duties:

6           1. Within twenty-four hours ~~of~~ AFTER appointment, conduct an  
7 interview with the patient.

8           2. At least twenty-four hours before the hearing, interview the  
9 patient's treatment physician or psychiatric and mental health nurse  
10 practitioner if available.

11          3. Before the hearing, examine the clinical record of the patient.

12          4. Before the hearing, examine the patient's court records as to  
13 the patient's involuntary treatment.

14       ~~I.~~ [L.] [M.] An attorney who does not fulfill the duties  
15 prescribed by subsection ~~H.~~ [K.] [L.] of this section is subject to  
16 contempt of court.

17       <<Sec. 3. Effective date

18       [This act is effective from and after December 31, 2026.]>>

19 Enroll and engross to conform

20 Amend title to conform

CONSUELO HERNANDEZ

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03/02/2026

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C: MH

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